

THOMAS, J., concurring

ters a decision that is demonstrably erroneous—*i. e.*, one that is not a permissible interpretation of the text—the Court should correct the error, regardless of whether other factors support overruling the precedent. Federal courts may (but need not) adhere to an incorrect decision as precedent, but only when traditional tools of legal interpretation show that the earlier decision adopted a textually permissible interpretation of the law. A demonstrably incorrect judicial decision, by contrast, is tantamount to *making* law, and adhering to it both disregards the supremacy of the Constitution and perpetuates a usurpation of the legislative power.

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When faced with a demonstrably erroneous precedent, my rule is simple: We should not follow it. This view of *stare decisis* follows directly from the Constitution's supremacy over other sources of law—including our own precedents. That the Constitution outranks other sources of law is inherent in its nature. See A. Amar, *America's Constitution* 5 (2005) (explaining that the Constitution is a constitutive document); Kesavan, *The Three Tiers of Federal Law*, 100 Nw. U. L. Rev. 1479, 1499, n. 99 (2006) (arguing that “[i]t is unnecessary for the Constitution to specify that it is superior to other law because it is higher law made by We the People—and the only such law”). The Constitution's supremacy is also reflected in its requirement that all judicial officers, executive officers, Congressmen, and state legislators take an oath to “support this Constitution.” Art. VI, cl. 3; see also Art. II, § 1, cl. 8 (requiring the President to “solemnly swear (or affirm)” to “preserve, protect and defend the Constitution of the United States”). Notably, the Constitution does not mandate that judicial officers swear to uphold judicial precedents. And the Court has long recognized the supremacy of the Constitution with respect to executive action and “legislative act[s] repugnant to” it. *Marbury*, 1 Cranch, at 177; *Youngstown Sheet & Tube Co. v. Sawyer*, 343 U. S.